

Paragraphs 3, 4, and 5 of the Motion to Strike, seek to strike items based on the same arguments raised on demurrer. (Mtn at p. 9:6-11.) For example, Defendants seek to strike the fraud causes of action based on purported pleading deficiencies. (Mtn. ¶ 5.) Defendants also seek to bar alternative legal theories. (Mtn ¶ 4.) Additionally, Defendants claim the equitable lien cause of action cannot be related back to the date the security was originated. (Mtn ¶ 3.)

Each of the above arguments were made on demurrer and argue that the allegations do not rise to a cause of action. Accordingly, the motion is duplicative and improper for a motion to strike.

Order

Defendants' Motion to Strike is denied in its entirety.

8. 9:00 AM CASE NUMBER: L24-02110
CASE NAME: VELOCITY INVESTMENTS LLC VS. LA PERKINS
HEARING IN RE: MOTION TO SET ASIDE DEFAULT & DEFAULT JUDGMENT
FILED BY:
TENTATIVE RULING:

Procedural History of the Case

Default was entered against the Defendant on June 17, 2025. Immediately thereafter, Defendant filed a motion to set aside Default and Default Judgment on June 26, 2025. Hearing was set for August 22, 2025.

On August 22, 2025, the court continued defendant's motion to set aside default and default judgment because defendant had not given plaintiff notice of the motion's date, time, and department where motion would be heard. The hearing was continued to October 17, 2025.

On October 17, 2025, the defendant's motion to set aside default and default judgment were dropped from calendar finding that Defendant still had not provided notice to the defendant of the time and date of the motion, nor what department the motion will be heard in.

The Defendant filed a Notice of Motion and Motion to Set Aside Default and Default Judgment, Memorandum of Points and Authorities and Declaration of Defendant with the court on October 17, 2026. That pleading shows the hearing date, time and place of February 6, 2026, at 9:00 a.m., Dept. 18, Judge D. Douglas in this court. On October 20, 2025, the Defendant filed a Proof of Service by First Class Mail with the court attesting that on October 17, 2025, a non party adult mailed "Motion to Set Aside Default" to Plaintiff's counsel Bryan Burnstad at 10805 Holder St., Suite 167, Cypress, CA 90630.

A Default Judgment was entered against the Defendant on December 10, 2025.

The court has not received an opposition to the Defendant's Motion to Set Aside Default and Default Judgment.

Discussion

The court recognizes there is a strong public policy in favor of granting relief and allowing the requesting party his or her day in court. The Court has broad discretion to vacate a default and/or default judgment. That discretion, however, “may be exercised only after the party seeking relief has shown that there is a proper ground for relief, and that the party has raised that ground in a procedurally proper manner, within any applicable time limits.” (*Cruz v. Fagor America, Inc.* (2006) 146 Cal.App.4th 488, 495.)

1. Timeliness

Defendant’s motion is timely. A defendant may seek relief from default under Code of Civ. Proc. (CCP) Section 473(b) by filing a motion within six months after the clerk’s entry of default. Here the clerk’s entry of default occurred on June 17, 2025, and the Defendant’s motion was filed on October 17, 202, just four months later. Defendant’s motion precedes the filing of the Default Judgment, so it is timely also with respect to the Judgment.

2. Grounds for Relief: mistake, inadvertence, surprise, or excusable neglect.

The court is empowered to grant relief from default “upon any terms as may be just ... from a judgment, dismissal, order or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. CCP Section 473(b). Relief may be based on declarations or other evidence making this showing.

In the absence of an attorney affidavit of fault, the burden is on the moving party to show that the default could not have been avoided through the exercise of ordinary care. (*Jackson v. Bank of America* (1983) 141 Cal.App.3d 55, 58.) Excusable neglect under C.C.P. § 473(b) is whether “a reasonably prudent person under the same or similar circumstances” might have made the same error. (*Los Rios Community College District* (1986) 42 Cal.3d 270, 276.) Inadvertence is defined as lack of heedfulness or attentiveness, inattention, fault from negligence. (*Hodge Sheet Metal Products v. Palm Springs Riviera Hotel* (1961) 189 Cal.App.2d 653, 656.)

Here defendant’s declaration states, in pertinent part, “I was going through a divorce. My housing was not stable. Work was slowing down if at all. I was so overwhelmed with not working, my three children being evicted. I did not intentionally ignore the lawsuit or the courts.”

The court finds the defendant has made a showing of inadvertence and excusable neglect. She was going through a divorce and eviction proceedings at the same time, while she was attempting to provide for her three children and her income was shrinking due to a slow down at work. She was “overwhelmed” and did not intentionally ignore the lawsuit. The court finds this is distinguishable from the situation of the defendant where allegations of being “busy” and “for[getting]” about the lawsuit were found not to constitute excusable neglect in *Andrews v. Jacoby* (1919) 39 Cal. App. 382, 383-84. The defendant here was overwhelmed by multiple personal crises rather than merely “busy.”

3. Procedural Requirements: copy of the proposed Answer

Section 473(b) of the CCP requires that copy of a proposed Answer be attached to the motion for

relief from Default. Defendant did not attach a copy of her proposed Answer to her current motion to set aside the default. (Defendant filed a proposed Answer with her original motion to set aside the default, but she did not file one with her current motion.) The motion must be denied for this reason.

However, the courts have found that this requirement is not jurisdictional and substantial compliance may suffice. (*Carmel, Ltd. v. Tavoussi* (2009) 175 Cal. App. 4th 393, 403) In that case, the court found substantial compliance where the proposed Answer was brought to the motion hearing and granted a motion for relief from default.

Order:

The motion to set aside default and default judgment is denied, due to the Defendant's failure to submit a proposed Answer with her motion. In order to preserve her right to attend the hearing on February 6, 2026 and potentially bring a copy of a Proposed Answer, Defendant must email the court at dept32@contracosta.courts.ca.gov by 4:00 pm on February 5, 2026 and indicate her request to argue the case on February 6, 2026. The court reserves the right to reverse this order should Defendant email or bring a copy of a proposed Answer to the hearing on February 6, 2026 at 9:00 am in Department 32.

If no party emails the court to request argument by 4:00 p.m. on February 5, 2026, this tentative ruling becomes the order of the court.

9. 9:00 AM CASE NUMBER: N23-2169
CASE NAME: KARL DEBRO VS. CONTRA COSTA COMMUNITY COLLEGE DISTRICT
***HEARING ON MOTION IN RE: PEREMPTORY WRIT OF MANDATE AND MANDAMUS**
FILED BY: DEBRO, KARL
TENTATIVE RULING:

Continued by the Court to April 10, 2026.

10. 9:00 AM CASE NUMBER: N25-0754
CASE NAME: VANTAGE POINT LAW, INC. VS. DAN MIERZWA
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: MIERZWA, DAN M.
TENTATIVE RULING

On January 27, 2026 this hearing was continued to March 27, 2026 at 9:00 a.m. in Dept. 32.

11. 9:00 AM CASE NUMBER: N25-0756
CASE NAME: RAINS LUCIA STERN ST. PHALLE & SILVER, PC VS. DAN MIERZWA
HEARING ON DEMURRER TO: PETITIONER'S VERIFIED PETITION FOR WRIT OF MANDATE
FILED BY: MIERZWA, DAN M.
TENTATIVE RULING

On January 27, 2026 this hearing was continued to March 27, 2026 at 9:00 a.m. in Dept. 32.